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Big Tech says it's policing hateful content. A new California bill asks the details

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More than 40% of Americans have experienced some kind of online hate or harassment, with many of those instances taking place on large social media sites, according to a report from the Anti-Defamation League.

A new state bill wants to hold large social media companies to account for how they police that kind of harmful content.

Introduced by California Assembly Member Jesse Gabriel, D-Woodland Hills (Los Angeles County), AB587 is directed at social media giants like Facebook and others with gross revenue in excess of $100 million annually.

If signed into law, the legislation would require social media companies to make public their policies on how they monitor hate, disinformation, extremism, harassment and foreign interference on their sites.

The bill also would force those companies to disclose whether they use human or artificial intelligence to monitor instances of harmful content, and to provide data on the effectiveness of their efforts to stop it.

"Californians are becoming increasingly alarmed about the role of social media in promoting hate, disinformation, conspiracy theories and extreme political polarization," Gabriel said in a statement. "It's long past time for these companies to provide real transparency into their content moderation practices."

Facebook, Twitter and Google, which owns YouTube, did not respond to emailed requests for comment about the bill.

The goal of the legislation "is to create consistency and a mechanism to help the public better understand how content moderation is operating on these platforms," said Lauren Krapf, national policy counsel at the Anti-Defamation League.

Krapf said the recent survey found that close to three-fourths of respondents wanted the companies to report on incidents of hate that crop up on their sites, adding that she hopes the bill can be part of a larger strategy to confront online extremism and its offline consequences.

Krapf pointed to "the fluidity between online violence, which does exist, and offline violence, which we've seen too frequently these days."

The legislation also comes at a time when some studies have shown the U.S. population is increasingly mistrustful of technology and Big Tech companies, particularly when it comes to weaponized disinformation.

The bill aims to rein in not only some of the largest social media companies in existence, but some of the largest companies overall in terms of value and revenue. That is no small task, with the likes of Facebook and Google spending millions of dollars annually on federal lobbying to influence policy, in particular with respect to the much-debated Section 230 of the Communications Decency Act, which shields them from legal liability for what is said on their sites.

With that much legal and lobbying heft, enforcing any potential state law could be a challenge.

"We've seen companies get million-dollar fines and not blink," said Krapf, noting an enforcement mechanism is still being debated as the bill moves through the legislative process.

Without one, she said, "There would be an opportunity to not take this as seriously as it needs to be taken."

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